

Ashish Kumar v. State of U.P. — Tehsildar electricity recovery; EE speaking order; s.127 reserved

Allahabad High Court · Division Bench · 7 December 2019 · Writ-C No. 40267 of 2019 (All) · WRIT - C No. 40267 of 2019 · Writ disposed; objections before the Executive Engineer; speaking final order; coercive action stayed; s.127 reserved.

HEADNOTE

A writ seeking quash of a Tehsildar electricity-dues recovery citation of Rs. 9,92,329 was disposed without examining the demand. The consumer was directed to appear before the Executive Engineer with objections and evidence; the EE shall pass a speaking and reasoned final order. Coercive action stayed for six weeks or till disposal of the objection, whichever earlier. If aggrieved by that final order, appeal under Section 127 of the Electricity Act, 2003 is open.

FACTUAL SUMMARY

Ashish Kumar challenged a Tehsildar, Manikpur (Chitrakoot) recovery notice dated 23 November 2019 for Rs. 9,92,329 of electricity dues. He also sought a mandamus to the Executive Engineer, Vidyut Vitran Mandal, Chitrakoot to revalue the demand after compounding and to accept the corrected amount in easy installments. He alleged coercive recovery without a hearing and without following the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery citation — objections before EE, speaking final order, s.127 reserved

HOLDING

Without deciding the validity or quantum of the Tehsildar recovery citation, the Court directed the consumer to appear before the Executive Engineer with objections and evidence; the EE shall pass a speaking and reasoned final order within four weeks. Coercive action is stayed for six weeks or till disposal of the objection, whichever is earlier, and stands vacated if the objection is not filed. If aggrieved by that final order, the consumer may appeal under Section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 Writ against a Tehsildar electricity-dues recovery citation was disposed without merits; after the Executive Engineer's speaking final order, the consumer may appeal under s.127. ¶ 1

alternative-remedy-section-127-appeal Liberty reserved to file a statutory appeal under Section 127 of the Electricity Act, 2003 if the consumer is aggrieved by the Executive Engineer's final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RS. 9,92,329 RECOVERY CITATION

No finding on whether the demand was correctly assessed. ¶ 1

NOT DECIDED — COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged want of hearing and Code procedure was not adjudicated. ¶ 1

NOT DECIDED — COMPOUNDING, REVALUATION, AND INSTALLMENT FACILITY

Mandamus on those prayers was not granted on merits. ¶ 1

